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Landmark Bill Would Protect Californians From Harmful Additives In Food And Candy

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SACRAMENTO, California, Feb. 23 (TNSgov) -- Consumer Reports posted the following news release:

On February 2, a first-in-the-nation bill to create a state-level ban on harmful food additives was introduced in California by Assemblymember Jesse Gabriel (D-San Fernando Valley). If passed, it would bar five toxic chemicals from candy, cookies and other popular items.

Gabriel's legislation, Assembly Bill 418, would protect Californians from food additive chemicals linked to a wide array of alarming health harms, including a higher risk of cancer, hyperactivity and other behavioral problems, harm to the nervous system, and even damage to DNA.

"Californians shouldn't have to worry that the food they buy in their neighborhood grocery store might be full of dangerous additives or toxic chemicals," said Assemblymember Gabriel, Chair of the Assembly Committee on Privacy and Consumer Protection. "This bill will correct for a concerning lack of federal oversight and help protect our kids, public health, and the safety of our food supply."

A.B. 418 is co-sponsored by the Environmental Working Group and Consumer Reports.

More than 10,000 chemicals are allowed for use in food sold in the U.S. Nearly 99 percent of those introduced since 2000 were approved by the food and chemical industry, not the Food and Drug Administration, the agency tasked with ensuring our food supply is safe.

Most of the chemicals added to food and food packaging to enhance flavor or appearance, to preserve freshness, or to serve other purposes in food are likely safe to eat. But these five chemicals the bill targets pose a threat to public health:

* Red Dye No. 3 has been linked to cancer and behavioral problems in children. It is found in more than 2,000 food products, including many types of candy, cookies and other foods marketed to children. In 1990, the FDA banned many uses of the dye, citing cancer risks. Since 1994, the European Union allowed Red No. 3 to be used in candied and cocktail cherries only.

* Brominated vegetable oil can build up in the body and has been linked to several health harms, including to the nervous system. It is prohibited in the EU from use in processed foods.

* Potassium bromate has has been linked to cancer but has not been reviewed for safety by the FDA since 1973. It has been prohibited from use in processed food in the EU since 1990 and since then has been on California's Proposition 65 list of chemicals that may cause cancer.

* Propyl paraben has not been thoroughly reviewed for safety by the FDA. It has been linked to harm to the hormone and reproductive systems, including decreased sperm counts. It has been prohibited from use in food in the EU since 2006 but is still used as a preservative in the U.S.

* Titanium dioxide has been linked to damage to our DNA and harm to the immune system. In 2022, the EU prohibited it from use in food offered for sale, but it is still allowed in food sold in the U.S. It is found in popular snacks like Skittles.

Each of these chemicals presents well-documented risks, is prohibited from use in processed food offered for sale in

the EU, and continues to be used in processed food offered for sale in the U.S. and California.

"What are these toxic chemicals doing in our food?" said Susan Little, EWG's senior advocate for California government affairs.

"We know they are harmful and that children are likely being exposed at a much higher rate than adults. It makes no sense that the same products food manufacturers sell in California are sold in the EU but without these toxic chemicals. Our kids need to be protected, too," Little said.

"We appreciate Assemblymember Gabriel's efforts to remove these toxic additives from California's food supply," she added.

Children have lower tolerance levels to chemical exposure than adults and their developing bodies make them especially vulnerable.

"These dangerous food chemicals should not be in our food supply as it puts consumers at risk for exposure to known carcinogens and hormone disrupters, and some have been linked to hyperactivity and other neurobehavioral effects in young children," said Brian Ronholm, director of food policy at Consumer Reports. "Banning these chemicals is long overdue and Consumer Reports applauds Assemblyman Gabriel for introducing this critical legislation."

Consumers consistently rank food chemical concerns ahead of other food safety issues. Despite this, additives are not adequately regulated by the FDA. This is due in large part to the lack of adequate financial support from Congress for food chemical reviews.

"For decades, the FDA has failed to keep us safe from toxic food chemicals," said Scott Faber, EWG senior vice president of government affairs. "In the absence of federal leadership, it's up to the states to keep us safe from toxic chemicals in candy, cookies and other foods our families enjoy."

The bill will be referred to a policy committee where it will receive its first hearing in spring.

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Original text here: https://advocacy.consumerreports.org/press_release/landmark-bill-would-protect-californians-from-harmful-additives-in-food-and-candy/

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